

1.

CASE #	CASE NAME	HEARING NAME
CVPS2404319	NOGUEZVARGAS VS NERIA	MOTION TO SET ASIDE DEFAULT ON COMPLAINT OF ARTHUR ISRAEL NOGUEZVARGAS BY URIEL NERIA, ANA K. TORRES

Tentative Ruling: Granted.

No opposition filed.

Default entered February 2, 2026 as to moving Defendants Ana K. Torres and Uriel Neria are set aside and vacated.

Moving Defendants to file their proposed answer to the operative complaint within 5 days of this order becoming final.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2600152	DOE VS RIVERSIDE COUNTY	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: Granted.

Court adopts and signs the proposed protective order filed July 23, 2026.

Moving party to provide notice pursuant to CCP 1019.5.

Plaintiff Jane Doe was a patient at one Defendant County of Riverside's medical facilities. She alleges that Defendant failed to preserve records, altered, and failed to keep complete medical records for Plaintiff. She contends she did not authorize anyone to alter, delete, or modify her medical records

The operative FAC, filed March 27, 2026, asserts causes of action for (1) Violation of Mandatory Duty; (2) Violation of the Confidentiality of Medical Information Act; (3) Violation of Patient Confidentiality Protections; and (4) Violation of California Constitutional Right to Privacy.

Trial is not currently set.

Discovery. On June 4, 2026, Defendant served discovery requests on Plaintiff. (Plaintiff Decl., ¶¶2, 9.) On June 5, 2026, Plaintiff served requests for production of documents ("RFPs") seeking County-generated documents relating to Plaintiff's 14-page psychiatric medical journal and "the derivative 12-page altered psychiatric medical journal." (*Id.* at ¶¶3, 9.) Defendant informed Plaintiff that the County required Plaintiff to sign a HIPAA/42 C.F.R. Part 2 Medical Release (the "Release") to comply with state and federal law before production. (*Id.* at ¶¶6, 9.) On June 9, 2026, Plaintiff emailed Defendant a proposed PO and asked, but Defendant never responded to the June 9 email or Plaintiff's subsequent follow up on June 15, 2026. (*Id.* at ¶¶4-5, 15.)

Motions. Plaintiff now moves for a protective order ("PO") governing the handling, disclosure, and use of Plaintiff's mental-health materials, including her original copyrighted 14-page psychiatric medical journal and the copyrighted derivative 12-page altered medical journal. Plaintiff argues Defendant did not "identify any specific discovery request that would require access to [Plaintiff's] medical records for the County to produce its own internal documents." (Plaintiff Decl., ¶9.)

Plaintiff contends Defendant's demand for the Release has no legal basis. Plaintiff seeks sanctions against Defendant for "causing unwarranted delay and failing to respond in good faith to meet-and-confer efforts." (Mot., pg. 2:10-16.)

Defendant filed a "response and partial opposition," explaining that Plaintiff submitted a 14-page journal during the period of her treatment as a patient at a clinic in Blythe, asked that it be included in her records, and is now alleging portions of that journal has been altered. Defendant asserts it agrees that a protective order should be entered but disagrees with the details of Plaintiff's proposal. Defendant provides the proposed PO it sent Plaintiff that is also Plaintiff's Exhibit E.

Motion for Protective Order

A motion for protective order must be accompanied by a meet and confer declaration showing a reasonable and good-faith attempt to resolve the dispute informally. (Code Civ. Proc., §§ 2031.060, 2016.040.) A meet and confer declaration "shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a), emphasis added.)

Here, Plaintiff only sent emails, which is not Code-compliant. (Plaintiff Decl., ¶¶4, 5, Exhs. A-C.)

Although acting in pro per, a pro per litigant is held to the same standards as attorneys. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536.) She must comply with the rules of court to the same extent as an attorney. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444.)

Based on a review of the email communication between the parties, it does not appear that further efforts would be fruitful. Moreover, the parties seem to be in agreement that a PO should issue but disagree as to the terms. Regardless, the Court cautions Plaintiff to comply with the requisites set forth in the Code of Civil Procedure moving forward.

"The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.020, subd. (a).) The court may limit discovery if it is unreasonably cumulative, duplicative or obtainable from another source that is more convenient, less burdensome or less expensive. (*Id.* at § 2019.030, subd. (a)(1).) The court may also limit discovery if it is unduly burdensome or less expensive. (*Id.* at § 2019.030, subd. (a)(1).) The court may also limit discovery if it is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy and the importance of the issues at stake in the litigation. (*Id.* at § 2019.030, subd. (a)(2).) A party may move for a protective order that "protects any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (*Id.* at § 2025.420, subd. (a).)

It is undisputed the 14-page psychiatric medical journal (the "Journal") in dispute was authored by Plaintiff while she was a patient receiving care at a Blythe clinic. (Plaintiff 6/23/26 Decl., ¶3; Response/Opp., pg. 1:24-28; Reply, pg. 2:3-10.) Apparently, Plaintiff requested to have this Journal included in her records, a fact that Plaintiff does not dispute in reply. (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [the failure to respond to a point is "equivalent to a concession"].)

As pointed out by Defendant, federal and state law requires an authorization before medical records can be released pursuant to 45 C.F.R. 164.512 and Civil Code section 56.10. Defendant explains this to Plaintiff in email on June 9, 2026 by defense counsel, Christopher Lockwood

(“Lockwood”). (Plaintiff Decl., Exh. A.) Lockwood again explains the need for the Release in an email to Plaintiff on July 20, 2026: “Because of the nature of this case I have not reviewed any of your records, and I will not do so until I receive your signed release or a court order. It would be a violation of both your privacy rights and federal law to review those records otherwise.” (Plaintiff 7/28/26 Supp. Decl., Exh. D.) Indeed, Plaintiff cites to privacy as a concern in reply.

Medical records are protected by the right of privacy. (*John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1198.) Medical information involves a patient’s medical history, mental or physical condition, or treatment combined with individually identifiable information. (*Eisenhower Medical Center v. Superior Court* (2014) 226 Cal.App.4th at 434, 436 [the mere fact a person is or was a patient is not accorded the same level of privacy as more specific information about his medical history].) Individually identifiable information involves the patient’s name, address, electronic mail address, telephone number, social security number, or other information that, alone or in combination with other publicly available information, reveals the individual’s identity. (*Id.* at 434-435, 437.)

HIPAA provisions address information that relates to past, future, or present medical healthcare. California also takes after HIPAA in prohibiting a healthcare provider from disclosing “medical information regarding a patient...without first obtaining an authorization...” (Civ. Code, § 56.10, subd. (a); Health & Saf. Code, § 130301, subds. (a) & (d).) Under HIPAA, a covered entity may disclose protected health information in the course of judicial or administrative proceedings in response to an order of a court or administrative tribunal. (See 45 C.F.R. § 164.512, subd. (d)(1)(i).)

Thus, as a medical provider, Defendant cannot release the Journal that Plaintiff requested be part of her medical records without first obtaining an authorization. (Civ. Code, § 56.10, subd. (a); Health & Saf. Code, § 13031, subdiv. (a) & (d).) Plaintiff merely needs to sign the Release to obtain the Journal she seeks.

Defendant explains why it objects to portions of Plaintiff’s proposed PO: it makes factual findings that Plaintiff’s allegations are true; it is vague as to what it designates as confidential; it lacks foundation that the Journal is copyright; it improperly precludes use of documents in depositions and other discovery, in support of and in opposition to motions, and at trial; and it limits who can see documents designated as confidential. Defendant argues Plaintiff’s proposed order stating, “Defense counsel shall not demand or require Plaintiff to sign any HIPAA or 42 C.F.R. Part 2 medical release as a condition of producing County generated documents,” violates federal and state law.

Plaintiff attaches a copy of Defendant’s proposed PO. (Plaintiff Decl., Exh. E.) In reply, Plaintiff argues the proposed PO enables improper access: “Employees of the County of Riverside Department of Behavioral health who were involved in the treatment of plaintiff Jane Doe, and/or who managed her records, and their secretarial staff, and the claims adjusters for the County of Riverside assigned to this case.” Plaintiff fails to explain why it is improper for health care providers involved in Plaintiff’s treatment would have improper access to the documents that are part of her records and fails to cite any authority to support such argument. “[E]very brief should contain a legal argument with citation of authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration.” (*Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050.)

Sanctions

Sanctions are denied because Defendant acted with substantial justification.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2401630	DURO VS CITY OF INDIO	MOTION TO SET ASIDE DISMISSAL ON 1ST AMENDED COMPLAINT OF NICHOLAS DURO BY NICHOLAS DURO

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This case arises from Plaintiff Nicholas Duro's ("Plaintiff") April 2023 detention, alleged assault by private security personnel, and subsequent arrest by City of Indio police officers at the Coachella Valley Music and Arts Festival in Indio, California. (First Amended Complaint ["FAC"] ¶ 45.) Plaintiff alleges that security personnel (including Defendants Joshua Titel and Carrie Waugh) misidentified him as the perpetrator of a wristband theft, and that Titel violently threw him to the ground, placed him in a chokehold, and detained him, causing a concussion and traumatic brain injury, while Indio Police Officers Oscar Santos and Russell Peddycord subsequently arrested him for trespassing without reviewing video footage or summoning medical care. (*Id.* at ¶¶ 45–50, 59.)

Plaintiff filed his original Complaint on March 26, 2024, and his operative First Amended Complaint ("FAC") on September 24, 2024, asserting eight causes of action against the City of Indio, County of Riverside, Goldenvoice, AEG Presents, Anschutz Entertainment Group, Apex Security Group, Contemporary Services Corporation, C.I. Security Services, and the individual defendants: (1) Violation of the Bane Civil Rights Act (Civ. Code § 52.1); (2) Failure to Summon Immediate Medical Care (Gov. Code § 845.6); (3) Negligence; (4) Negligent Hiring/Supervision; (5) False Arrest/False Imprisonment; (6) Assault and Battery; (7) Violation of the Right of Protection from Bodily Restraint or Harm (Civ. Code § 43); and (8) Intentional Infliction of Emotional Distress.

The following facts are undisputed or established by the record:

On April 11, 2025, Defendants served initial discovery on Plaintiff. (Marshall Decl. ¶ 6.)

After a meet-and-confer process, Plaintiff served responses on June 6, 2025, and further responses on September 4, 2025, all of which were deficient. (*Id.*)

Defendants served a second set of discovery on July 11, 2025, to which Plaintiff served deficient responses on September 4, 2025. (*Id.*)

On September 10, 2025, Plaintiff's counsel Kaveh Navab informed Plaintiff of his intent to withdraw from the case. (*Id.* at ¶ 7.)

On October 31, 2025, the same day Defendants filed four motions to compel discovery, Mr. Navab informed Plaintiff that he would be filing a motion for leave to withdraw. (*Id.*)